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NO. 38381-4-III

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

ADELINA GABRIELA SUAREZ,

Plaintiff/Appellant,

v.

THE STATE OF WASHINGTON, TAMMY WINEGARD and her community property, JULIANNE MOORE and her marital Community property, and TAMMY MASTERS and her community property,

Defendants/Appellees.

STATE RESPONDENT'S BRIEF

ROBERT W. FERGUSON
Attorney General

NICHOLAS ULRICH
WSBA No. 50006
Assistant Attorney General
1116 W. Riverside, Suite 100
Spokane, WA 99201-1106

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I. INTRODUCTION

Despite knowing that the facility was short staffed, Adelina Suarez, a probationary employee, unilaterally decided not to come to her shift at Yakima Valley School, a licensed nursing facility that provides 24/7 services to vulnerable disabled adults. Shortly after this missed shift, the School ended Suarez's probationary employment. Suarez complained that the School failed to accommodate her religious beliefs because the School granted her only four of the six days she wanted off for religious purposes and wrongfully terminated her in violation of public policy after she chose to take the day off and despite the School's decision denying her request. The superior court granted summary judgment.

The Court should affirm summary judgment for two reasons. First, Suarez cannot demonstrate failure to accommodate. An employer need not accommodate a religious request if it would give rise to more than a de minimis cost to the employer, including interfering with the rights of other

employees under a Collective Bargaining Agreement (CBA). Here, the School established an undue burden because her requests conflicted with the CBA and would have unfairly burdened other employees. Second, Suarez is simply incorrect in suggesting that her religious beliefs granted her a privilege to not show up to work when she was participating in a religious function. The Washington Law Against Discrimination (WLAD) prohibits discrimination; it does not grant an employee the privilege to skip her shift when leave has been denied because of a staffing shortage.

II. STATEMENT OF THE ISSUES

1. An employer can deny a requested religious accommodation when it would create an undue burden on the employer by subjecting it to more than a de minimis cost. Here, Ms. Suarez requested six days off for religious purposes, only two of which were denied because of a staffing shortage. Did the trial court properly grant summary judgment on Ms. Suarez's religious accommodation claim?

2. An employer may not terminate an employee if doing so violates an established public policy. Here, Yakima Valley School ended Ms. Suarez's probationary employment after she did not show up for her shift when her request for leave had been denied because of a staffing shortage. Did the trial court properly grant summary judgment on Ms. Suarez's wrongful termination in violation of public policy claim?

III. STATEMENT OF THE CASE

A. Ms. Suarez Worked for the Yakima Valley School, a Certified Nursing Facility that Cares for Vulnerable, Disabled Adults

Ms. Suarez began working for Yakima Valley School (the School) in October of 2018. CP at 115. Despite its name, Yakima Valley School is not a school in the traditional sense; rather, it is a certified residential nursing facility in Yakima that serves vulnerable, disabled adults. CP at 164. The School is administered by the Department of Social and Health Services' (Department's) Developmental Disabilities Administration and offers a full spectrum of clinical, therapeutic, and respite

programs including medical, dental, nursing, pharmacy, and psychiatric services. *See* CP at 164.

Because of the vulnerability of the residents it serves, the facility is staffed 24 hours a day, seven days a week. CP at 319. There are also necessary minimum staffing levels to adequately care for the School's residents. CP at 165. The day is broken up into three 8-hour shifts. *Id.* Certain residents require more intensive care including "one-to-one care, where there needs to be a dedicated staff for each individual." CP at 320. The School's staff consists largely of certified nursing assistants (CNAs). CP at 165. At minimum, twenty-one CNAs need to be present to adequately staff the night shift. CP at 165, 233.

To ensure the School has necessary coverage each day for each shift, the School hires CNAs for a particular schedule. CP at 165. Their working hours and days off are tied to the specific position the CNA is hired for. CP at 125, 164–5, 319.

B. Ms. Suarez Accepted a Job as a Certified Nursing Assistant for a Particular Position with Mondays and Tuesdays Off, Requiring Her to Work Saturdays

Ms. Suarez participated in a training program offered by the Department to become a Certified Nursing Assistant. CP at 115–16. She did the training program in the summer and then applied for a position in September of 2018. CP at 116–17. Ms. Suarez was offered a specific position that included the following express terms: (1) night shift from 10:00 p.m. to 6:00 a.m., (2) Wednesdays through Sundays, with Mondays and Tuesdays off. CP at 123–24, 159. She accepted the offer and signed the position description form for this position. CP at 122-23, 125, 159. Her first day of work was October 8, 2018. CP at 122. At the time she accepted the position, Ms. Suarez knew she would be required to work on Saturdays. CP at 125.

Employees of the School are unionized and the CBA dictates how to request positions for more preferred days off. *See* CP at 165. Ms. Suarez's position was subject to the CBA and was designated "emergent" per the Department's Emergency

Operations Plan. CP at 159, 161.[1] Because it was an emergent position, it could require the employee to "Report for duty on short notice for a specified timeframe" and engage in "duty outside of normally scheduled work hours and workdays." CP at 162–63.

Under the CBA, seniority controls whether a person is entitled to a position with more preferred days off. CP at 165. There is a bid system that allows permanent employees who are outside their probationary periods to bid on positions with different days off or different shifts. *Id.* An employee does not become eligible to bid on a new position until he or she completes the probationary period. CP at 165, 319. However, nothing in the CBA prohibits a probationary employee to apply for another position with different days off if a position opens

[1] Ms. Suarez has never disputed that her position was subject to the CBA. In fact, the CBA provisions are discussed in new employee orientation. CP at 318. She also discussed the CBA with her supervisor as early as November of 2018. *See* CP at 130.

and has no bids. *Id.* Ms. Suarez acknowledges that someone who has been there for longer may have more preferred days off because of the seniority system. CP at 126. Saturday, of course, is one of the more sought after days off. CP at 127.

C. Ms. Suarez Ignored the Requirements of the CBA by Refusing Mandatory Overtime

To allow the School to maintain necessary staffing levels, the CBA included a provision that, under certain specified circumstances, allowed management to require staff to work overtime. CP at 165. This is called mandatory overtime. *Id.* The CBA permitted staff to refuse a maximum number of mandatory overtime days per quarter. *Id.* Prior to July 1, 2019, staff could refuse one day of mandatory overtime per quarter. *See* CP at 151, 153. After July 1, 2019, staff could refuse a maximum of two days per quarter. *See* CP at 149.

Ms. Suarez refused more than the allowed number for three of the four quarters she worked there. CP at 128–32, 149, 151, 153. For example, despite the express terms of the CBA permitting refusal twice per quarter, Ms. Suarez refused

mandatory overtime four times in the thirty-day period between July 13 and August 10, 2019. CP at 131–32, 149. Because of this, she had several performance meetings with her supervisor, Tammy Masters, regarding her refusals. *Id.* Ms. Suarez was advised that her conduct in refusing mandatory overtime could result "in additional disciplinary action up to and including dismissal." CP at 149.

The CBA also had a provision regarding time off for religious purposes. CP at 165, 169. Specifically, it provides employees with only two days of unpaid leave for religious reasons:

> **18.16 Holidays for a Reason of Faith or Conscience**
>
> Leave without pay will be granted for a reason of faith or conscience or an organized activity conducted under the auspices of a religious denomination, church or religious organization *for up to two (2) workdays per calendar year* . . . .

CP at 129 (emphasis added). It requires the employee to submit written notice fourteen days in advance of the requested day off.

Id. However, an employer can refuse to approve a day off for reason of faith or conscience if it creates an undue hardship on the employer. *Id.*

In 2019, the School granted Ms. Suarez substantial time off for religious purposes. In April 2019, Ms. Suarez requested five days off related to her observance of Passover. CP at 227. The School approved her request. CP at 227, 133–34.[2]

D. Ms. Suarez Requested Religious Time Off in the Fall of 2018, Which was Denied in Part Because of a Staffing Shortage

On September 8, 2019, Ms. Suarez put in requests for time off on September 28 and 29, as well as October 5 and 6. CP at 229, 378. She made this request for paid time off. CP at 229. Per the CBA, availability for paid time off is based on seniority. CP at 224, 319. Employees put in all the leave they want at the beginning of the year. *Id.* These requests become part of the

[2] The School also granted Ms. Suarez's non-religious leave when staffing allowed. Specifically, she requested and received over two weeks off for an emergency trip out of the country in May of 2019. CP at 228.

request pool. *Id.* The School then approves requests based on availability and seniority. *Id.* Ms. Suarez did not submit any requests for paid time off at the beginning of the year in January 2019. CP at 229, 319. Unfortunately, the four days that Ms. Suarez requested as paid time off had already been allotted to other employees under the above outlined process. CP at 229. Ms. Suarez's request for paid time off was therefore denied. CP at 229.

On September 13, Ms. Masters told Ms. Suarez that if she still wanted those days off, she needed to have a conversation with the appointing authority, Tammy Winegar, regarding leave without pay. CP at 229, 358. Only Ms. Winegar,[3] as the appointing authority, can approve requests for leave without pay. CP at 229, 320, 358. Ms. Suarez was provided Ms. Winegar's contact information. CP at 229.

[3] Ms. Winegar is the Superintendent of Yakima Valley School. CP at 164. However, she is also the official "appointing authority" and is referred to that way. CP at 164, 229, 320, 358.

Although she wanted time off beginning on September 28, Ms. Suarez waited until September 27 to contact Ms. Winegar. CP at 138, 155, 166, 171. Ms. Suarez spoke with Ms. Winegar in person and then sent her an email on September 27. *Id.* Ms. Suarez made a different request, now asking for six days off: September 28 and 29; October 12 and 13; and October 19 and 20. *Id.* Ms. Winegar approved the request for four days off: October 12, 13, 19, and 20 for leave without pay. CP at 140, 166, 171. The September 27 request to have September 28 and 29 off was denied because of staffing issues on that short of notice. *See* CP at 140, 166, 171. The School needed 21 staff to maintain staffing levels, and there were 24 CNA positions assigned to work, but there were four vacant positions. CP at 231, 233. Thus, the School was already short of staff for night shifts and had to get on-call or floating staff to cover the need. CP at 231, 233, 237 ("The duty desk had staff staying over."). Ultimately, it needed six overtime staff for the night. CP at 231, 233–35, 237. Thus, there were "too many staff down" with "too many vacant

positions" given their staffing requirements to accommodate Ms. Suarez's full request. CP at 237–38. Though the CBA only required the School to approve two days off for religious purposes, it approved four days in an effort to accommodate Ms. Suarez.[4] CP at 166.

E. Despite Knowing There was a Staffing Shortage and That Her Request Had Been Denied, Ms. Suarez Did Not Show Up for Work

Ms. Suarez reported for work on September 28, but then left town after her shift was over – despite knowing that her request for time off on September 29 had been denied. CP at 140–41, 166, 171. At around 4:30 p.m., just a few hours before her shift was to start, she called in saying that she was refusing to come in despite knowing that her request had been denied. CP at 142, 173. ("I requested tonight off without pay and it was denied but I'm in Seattle right now with my church thing and I won't be in. I don't want to be paid for this night off but I'm not

[4] This count sets aside that she had already received five days off for religious purposes in April.

coming in.") Further, although she had made the decision not to show up around 7:00 a.m. *and* she knew that the School would be short-staffed without her, thereby forcing the School to scramble to replace her, she chose to wait over eight hours before she informed the School. CP at 135–136, 143–146, 173. Ms. Suarez believes she did nothing wrong. CP at 145 ("I never did anything wrong to them.")

F. The Department Ended Ms. Suarez's Probationary Employment

Shortly after Ms. Suarez missed her shift on September 29, the Department gave her notice that her probationary employment was ending effective October 4, 2019. CP at 166. The Department ended her probationary employment because she had a history of refusing mandatory overtime without justification and she elected to not show up when she knew the facility would be short-staffed without her. CP at 166, 379–80.

G. The Trial Court Granted the Department's Motion for Summary Judgment, Rejecting Plaintiff's Claims for Failure to Accommodate and Wrongful Termination in Violation of Public Policy

On April 29, 2020, Ms. Suarez brought suit alleging violations of RCW 49.60 and wrongful termination in violation of public policy. CP at 3–6. In May 2021, the parties brought competing motions for summary judgment. CP at 97, 199.

Both in her own motion and in defending against Defendants' motion, Ms. Suarez asserted only two claims: a failure to accommodate theory under the WLAD and a common law claim of wrongful discharge in violation of public policy. CP at 287, 290–92. In her briefing or at oral argument, Ms. Suarez did not raise either a disparate treatment theory of liability under WLAD or a retaliation theory. *See* CP at 287–92.

At oral argument, Ms. Suarez expressly limited the grounds on which she was seeking summary judgment. She had raised two different bases for failure to accommodate under WLAD plus her argument for wrongful discharge. VRP, June 16, 2021, (hereinafter 1RP) at 8–9. At argument, she abandoned the

two under WLAD. *Id.* (listing the three arguments and stating "we acknowledge that there are disputed issues of fact with regards to the first two"). Thus, all she argued for regarding her motion was that Ms. Suarez was wrongfully terminated in violation of public policy for not coming to work on September 29. 1RP at 9.

The court heard argument on June 16, 2021. *See generally* 1RP. The trial court denied Ms. Suarez's motion and granted Defendants' motion. 1RP at 58; CP at 402–04. After the court orally ruled on summary judgment and without having previously briefed the issue, Ms. Suarez moved for a continuance pursuant to CR 56(f), which the court denied. 1RP at 60–62. The Court likewise denied Ms. Suarez's subsequent motion for reconsideration. CP at 466.

Ms. Suarez timely appealed. CP at 469. Specifically, she appealed the "order denying reconsideration of the granting of Defendant's motion for summary judgment." CP at 469. Ms. Suarez designated "the portion of the decision to be reviewed"

as "the granting of the complete summary judgment of Defendants on all claims." CP at 469. Ms. Suarez did not seek review of the denial of her summary judgment. *See id*.; *see also* RAP 5.3(a) (requiring the party to "designate the decision or *part of decision* which the party wants reviewed" (emphasis added)).

IV. ARGUMENT

The law does not require an employer to accommodate an employee's requests for religious accommodation at all costs. In fact, the employer can properly deny a claim for accommodation if it raises more than a *de minimis* cost. This can include non-monetary burdens to other employees or contractual obligations under a CBA. Here, the superior court properly granted summary judgment on Ms. Suarez's religious accommodation claim because the Defendants demonstrated that the accommodations would create an undue hardship given the CBA and residential nursing facility's staffing requirements. Still, the School approved four of her six requested days off, exceeding her entitlement under the CBA. Similarly, Ms. Suarez's claim for

wrongful termination in violation of public policy fails because she does not have a right or privilege to miss work for a religious purpose. There is no authority supporting her contention that she can unilaterally choose not to show for work when her employer has denied the time off due to a staffing shortage. If WLAD granted such a privilege it would violate the Establishment Clause of the First Amendment. Finally, this Court should reject Ms. Suarez's arguments for disparate treatment and retaliation because Ms. Suarez never argued those theories below.

A. The Standard of Review is De Novo

This Court reviews decisions on summary judgment de novo. *Sheikh v. Choe*, 156 Wn.2d 441, 447, 128 P.3d 574 (2006). Summary judgment is proper when consideration of the admissible evidence establishes the absence of a genuine issue of material fact. CR 56; *Phillips v. King Cty.*, 136 Wn.2d 946, 956, 968 P.2d 871 (1998). A material fact is one upon which the outcome of the litigation depends. *Barrie v. Hosts of Am., Inc.*, 94 Wn.2d 640, 642, 618 P.2d 96 (1980). "An adverse party may

not rest upon mere allegations or denials, but must instead set forth specific facts showing the existence of a genuine issue for trial." *McBride v. Walla Walla Cty.,* 95 Wn. App. 33, 36, 975 P.2d 1029 (1999); CR 56. A nonmoving party may not rest on speculation or argumentative assertions. *Martin v. Gonzaga Univ.,* 191 Wn.2d 712, 722, 425 P.3d 837 (2018).

A defendant may show either that there are no material facts at issue, or that the plaintiff cannot meet the burden of proof to establish the required elements of the claim. *Guile v. Ballard Cmty. Hosp*., 70 Wn. App. 18, 21, 851 P.2d 689 (1993); *see also Celotex Corp. v. Catrett*, 477 U.S. 317, 325, 106 S. Ct. 2548, 91 L. Ed. 2d 265 (1986). To show that the plaintiff cannot meet the burden of proof, the moving party need not support its position with affidavits and need only point out the lack of evidence in the record. *Guile*, 70 Wn. App. at 22. The plaintiff opposing summary judgment then must go beyond the pleadings and designate facts establishing a genuine issue of material fact for trial. *Celotex*, 477 U.S. at 325–26.

Ms. Suarez argued two claims in opposition to summary judgment. First, she argued failure to accommodate under the WLAD, and second, she argued wrongful termination in violation of public policy. The Court should affirm summary judgment as to both claims: the undisputed facts establish an undue hardship and the dismissal did not violate public policy. Additionally, this Court should reject Ms. Suarez's disparate treatment and retaliation theories because she did not raise them below. Finally, because Ms. Suarez does not prevail she is not entitled to attorney fees and costs.

B. The Court Should Affirm Summary Judgment on Ms. Suarez's Religious Accommodation Claim Because Undisputed Facts Demonstrate the Existence of an Undue Hardship

Ms. Suarez's religious accommodation claim fails because the undisputed facts demonstrate an undue hardship for the School to ensure that she never had to work on a Friday or Saturday, plus had all seven feast days off regardless of the staffing requirements of the school or the notice she gave.

To establish a prima facie case of discrimination for failure to accommodate religious belief or practice, a plaintiff must show, (1) she had "a bona fide religious belief, the practice of which conflicted with employment duties"; (2) she "informed the employer of the beliefs and the conflict"; and (3) "the employer responded by subjecting the employee to threatened or actual discriminatory treatment." *Kumar v. Gate Gourmet Inc.,* 180 Wn.2d 481, 501, 325 P.3d 193 (2014). However, even if an employee can demonstrate the above elements, the employer can defeat a religious accommodation claim by showing that it offered the employee a reasonable accommodation or that the accommodation would be an undue hardship. *Id.* Further, "a 'reasonable accommodation' need not be the precise accommodation the employee requests, even if the employer could provide that accommodation without suffering any undue hardship." *Kumar*, 80 Wn.2d at 502.

The Court should affirm summary judgment because Defendants demonstrated an undue hardship as a matter of law.

An accommodation is an undue hardship if it requires the employer "to bear more than a *de minimis* cost." *Id.* (citing *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 97 S. Ct. 2264, 53 L. Ed. 2d 113 (1977)). An undue hardship can be monetary, but it can also arise from "valid concerns other than money," including "legal obligations," "interests of clients," or "other employees" that would be "unduly burdened by an accommodation." *Id.* at 502. The Washington Supreme Court has noted that an accommodation is unreasonable where it "requires other employees to work weekend shifts they would otherwise be exempt from under the seniority system." *Kumar,* 180 Wn.2d at 502 n.33 (citing *Harrell v. Donahue*, 638 F.3d 975, 981 & n.7 (8th Cir. 2011)).

It is well-settled law that an accommodation request that conflicts with the provisions of the CBA, thereby giving the plaintiff a benefit over other employees with more seniority, is an undue hardship. *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 97 S. Ct. 2264, 53 L. Ed. 2d 113 (1977), *cited with*

approval in Kumar, 180 Wn.2d at 502. With facts remarkably similar to the present case, *Hardison* dealt with an airline clerk who worked in a 24/7 airplane maintenance facility. *Trans World Airlines, Inc. v. Hardison*, 432 U.S. 63, 66, 97 S. Ct. 2264, 53 L. Ed. 2d 113 (1977). He claimed that his religious beliefs precluded him from working Saturdays. *Id.* at 67–68. He had low seniority at his job and seniority was determinative under the CBA negotiated by the union. *Id.* He was terminated for failing to work Saturdays. *Id.* at 69. He claimed that the airline discriminated against him based on his religious beliefs by discharging him. Ultimately, the Supreme Court rejected the notion that an obligation to accommodate religious needs takes precedence over both the CBA and seniority rights of other employees. *Id.* at 79.

The Supreme Court noted, "any employer who . . . conducts an around-the-clock operation is presented with the choice of allocating work schedules either in accordance with the preferences of its employees or by involuntary assignment." *Id.*

at 80. It continued that where there are not enough individuals to voluntarily fill the shift the employer must mandate employees do so. In the case of *Hardison*, the employer and the employee union negotiated an agreement whereby the days off would be given preference in accordance with seniority. *Id.* The Court concluded that it could not force the employer to circumvent the seniority system to give a privilege to an employee with lower seniority. It admonished, "Had TWA nevertheless circumvented the seniority system by relieving Hardison of Saturday work and ordering a senior employee to replace him, it would have denied the latter his shift preference so that Hardison could be given his [and] the senior employee would have been deprived his contractual rights under the collective-bargaining agreement." *Id.*

In another case analogous to this one, the Eighth Circuit relied heavily on *Hardison* in *Harrell v. Donahue*, 638 F.3d 975, 981 (8th Cir. 2011). *Harrell* involved a USPS worker that wanted "every Saturday off" for religious reasons. When USPS could

not accommodate that request because it would interfere with the seniority rights of other employees, Harrell failed to show up for his Saturday shifts, and he was terminated. He sued under Title VII for failure to accommodate. The district court granted summary judgment because, even assuming that he could establish the elements of a prima facie case, USPS showed an undue hardship as a matter of law. *Id*. at 979. The Eighth Circuit affirmed: "In this case, requiring the USPS to grant leave to Harrell for scheduled Saturday shifts—either through annual leave or leave without pay—would have substantially imposed on Harrell's co-workers. Specifically, excusing Harrell from having to work on Saturdays would effectively violate the Warrensburg Post Office's long-standing seniority system, depriving Harrell's co-workers of their rights under the seniority system." *Id*. at 981. In *Kumar*, the Washington Supreme Court cited *Harrell*, indicating that an "accommodation was unreasonable where it would have required other employees to work weekend shifts that they otherwise would have been

exempt from under the seniority system." *Kumar*, 180 Wn.2d at 502 n.33.

Other circuits have similarly held that an employer need not accommodate an employee's requests based on burden to other employees. For instance, in *Weber v. Roadway Exp., Inc*., 199 F.3d 270, 274 (5th Cir. 2000), the Fifth Circuit recognized that the "mere possibility of an adverse impact on co-workers" is sufficient grounds for not providing the proposed accommodation. Additionally, in *E.E.O.C. v. Firestone Fibers & Textiles Co*., 515 F.3d 307, 318 (4th Cir. 2008), the Fourth Circuit looked to the cumulative effect on the other employees: "If Firestone were not to apply the attendance policy to one, and only one, employee, it would risk lowering morale by displaying favoritism, impinging on the shift rights of other employees, and violating the CBA and its seniority-based scheduling system."

Here, like *Hardison*, Yakima Valley School is a 24/7 facility requiring staff to work shifts that are less desirable in order to satisfy the School's business needs, i.e., providing

round-the-clock care to disabled adults. CP at 164, 319. To accomplish this, the School hires individuals for particular shifts with particular days off. CP at 125, 165, 319. Transferring between positions to more preferred days off is accomplished through a bid process that is controlled by seniority. CP at 165. Additionally, requesting paid time off is accomplished through submitting leave at the beginning of the year, which is then granted based on availability and seniority. CP at 229, 319. Further, the CBA specifically provides that employees are entitled to only two unpaid days off per year for religious purposes. CP at 169. It grants these holidays to all employees equally. CP at 129. Ms. Suarez, however, wanted more: she wanted every Saturday guaranteed off, plus seven feast days, regardless of the notice she gave for those days. The Department granted that where it could, including five days off in April and four days off in October. CP at 133–34, 227. But it denied it where it could not accommodate because of staffing shortages and burden on other employees. Had the School "nevertheless

circumvented the seniority system" by granting Ms. Suarez her exclusive shift or holiday preference, it would have deprived other employees of their "contractual rights under the collective-bargaining agreement." *See Hardison*, 432 U.S. at 80.

At the expense of her coworkers' contractually established rights and the health and safety needs of the residents of the School, Ms. Suarez is not entitled to her preferred days off. *See Harrell*, 638 F.3d at 981; *see also Weber*, 199 F.3d at 274; *Firestone Fibers*, 515 F.3d at 318.

Ms. Suarez asserts that there was no undue hardship for her to miss work on the one specific day she skipped: September 29th. *See* Appellant's Opening Br. at 16. At the outset, this argument is a red herring because she never requested that she get *only* September 29 off. In fact, she insisted she get September 28 and the 29 off plus four additional days in October. CP at 138, 155, 166, 171.[5] The request was denied only in part for

[5] It is now clear that Ms. Suarez asked for more days off than she actually needed to celebrate the religious feast. She had

September 28 and 29 as an undue hardship given the staffing levels that weekend with such a short notice to address that issue. CP at 140, 237–38, 166, 171. Given the staffing shortage, this is appropriate.

Regardless, the evidence does not support Ms. Suarez's contention that there were plenty of staff on that night. Appellant's Opening Br. at 11. Tellingly, she ignores the testimony regarding the *vacant positions*. Because there were four *vacant positions*, the School was already in a staffing shortage for night shift and had to get on-call or floating staff to cover the need. CP at 231, 233, 237. Ultimately, it needed six overtime staff for the night, and when Ms. Suarez did not show up, the School had to compel one staff member to work mandatory overtime on very short notice. CP at 231, 233–35, 237.

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requested the 28th and the 29th off, but then testified that the Feast for Trumpets actually began on September 29, thus, she never needed September 28 off for the feast. *See* CP at 247.

Ms. Suarez incorrectly suggests that the School readily accommodated non-religious-based leave. *See* Appellant's Opening Br. at 17 (indicating that there were other employees out sick for their shift that night who were not disciplined). This argument fails for two reasons. First, Ms. Suarez misunderstands the reasonable accommodation claim. A reasonable accommodation claim focuses on how the employer treats the specific employee's need for religious practice and whether any conflict could be accommodated without undue burden. *Kumar*, 80 Wn.2d at 502. Her argument of comparing treatment of one employee to another might support any disparate treatment claim, but she did not raise disparate treatment in the superior court. *See infra* Section D.

Second, Ms. Suarez improperly equates her situation to someone needing to take unplanned leave for being sick. Ms. Suarez's requested leave was for *planned* leave. She was well aware of her desire for this holiday in advance. She asked for the time off and was denied because of a staffing shortage. CP at 54–

55. In contrast, someone calling in sick is taking *unplanned* leave because of something that has come up. It is simply not an appropriate comparison to say that Ms. Suarez missing a shift (after asking for it off and having it be denied because of a staffing shortage) should be treated the same as someone coming down with an unplanned illness on the night in question. Ms. Suarez has not demonstrated that anyone absent the same night missed the shift after being denied planned leave.

Ultimately, *Kumar* establishes that an accommodation that requires violating the terms of a CBA or that places a burden on employees is unreasonable and creates an undue hardship. Accordingly, the superior court properly granted summary judgment of Ms. Suarez's religious accommodation claim, and this Court should affirm.

C. The Court Should Affirm Summary Judgment on Ms. Suarez's Wrongful Termination in Violation of Public Policy Claim Because Ms. Suarez's Religion Does Not Grant Her a Privilege to Miss Work During a Staffing Shortage

Ms. Suarez was not terminated for exercising a legal right or privilege because WLAD does not entitle her to unfettered accommodation of her religious practices. WLAD deals with discrimination; it does not and cannot grant her a privilege to miss work. If it were to grant such a privilege, it would be unconstitutional under United States Supreme Court precedent.

To establish a claim for wrongful discharge in violation of public policy, the plaintiff must prove three things: (1) an existing clear public policy (clarity element); (2) discouraging the conduct in which the employee engaged would jeopardize the public policy (jeopardy element); and (3) the policy-linked conduct caused the dismissal (causation element). *Rose v. Anderson Hay & Grain Co.*, 184 Wn.2d 268, 287, 358 P.3d 1139 (2015). If plaintiff satisfies these three elements, the employer

still prevails if it is able to offer an overriding justification for its termination decision. *Id.*

There are four scenarios that satisfy the first two prongs as a matter of law:

> 1) when employees are fired for refusing to commit an illegal act, (2) when employees are fired for performing a public duty or obligation, such as serving jury duty, (3) when employees are fired for exercising a legal right or privilege, such as filing workers' compensation claims, and (4) when employees are fired in retaliation for reporting employer misconduct, i.e., whistle-blowing.

Rose, 184 Wn.2d at 287. Ms. Suarez argues that the third option applies here. Appellant's Opening Br. at 15 (referencing "exercising a legal right or privilege."). She is wrong. Ms. Suarez was not terminated for exercising a legal right or privilege because WLAD does not grant such a privilege.

WLAD prohibits discrimination by employers, including religious discrimination. *See* RCW 49.60.010, .030. It does not, however, create a privilege that requires an employer to comply with all requests even if they create an undue hardship. *Kumar*,

180 Wn.2d at 502 & n.33 (recognizing that accommodations can be denied where there is more than a "de minimis" cost to the employer). Nothing in the text of the statute indicates a "privilege." *See* RCW 49.60.010, .030. Further, Ms. Suarez has offered no authority to suggest that WLAD grants an unlimited privilege not to attend work on every religious holiday the employee celebrates.[6]

If the WLAD did grant Ms. Suarez the absolute privilege that she assumes, i.e., to take all her religious days off as a matter of right, it would violate the Establishment Clause of the First Amendment. *See Estate of Thornton v. Caldor, Inc.*, 472 U.S. 703, 710, 105 S. Ct. 2914, 2918, 86 L. Ed. 2d 557 (1985). In *Estate of Thornton*, the United States Supreme Court considered

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[6] Ms. Suarez seems to suggest that her religious holidays are somehow superior to others her coworkers may recognize: "The feasts are not like holidays such as Christmas or Easter, where attendance is optional and is more like a casual get together." CP at 244; *see also* Appellant's Opening Br. at 6. This notion of superior or inferior holy days should be rejected. The whole point of WLAD is *not* to discriminate based on religion; it should not be used to endorse a religious hierarchy.

a Connecticut law that granted employees the privilege not to work on their Sabbath: "No person who states that a particular day of the week is observed as his Sabbath may be required by his employer to work on such day. An employee's refusal to work on his Sabbath shall not constitute grounds for his dismissal." *Id*. at 706 (internal quotation marks omitted). In analyzing this law under the First Amendment, the Court recognized that a state cannot act in a manner that either advances or inhibits religion. *See id*. at 708. The Court interpreted the Connecticut law as granting "an absolute and unqualified right not to work on whatever day they designate as their Sabbath" and noted that this law "imposes on employers and employees an absolute duty to conform their business practices to the particular religious practices of employees." *Id*. at 709. The Court found the law unconstitutional: "We hold that the Connecticut statute, which provides Sabbath observers with an absolute and unqualified right not to work on their Sabbath, violates the Establishment Clause of the First Amendment." *Id*. at 710–11.

Thus, not only does the plain language of WLAD indicate that it does not grant Ms. Suarez the privilege not to work because she has designated it her Sabbath, if it did, it would be unconstitutional under the Establishment Clause. Accordingly, the Court should affirm summary judgment on Ms. Suarez's claim of wrongful discharge in violation of public policy.

D. The Court Should Reject Ms. Suarez's Attempts to Raise Disparate Treatment and Retaliation Theories of Liability for the First Time on Appeal

Ms. Suarez's newly raised arguments on disparate treatment and retaliation theories of liability are not properly before this Court. *See* Appellant's Opening Br. at 18–19. She did not argue either theory below.

It is well established that a party cannot raise a new issue on appeal. RAP 2.5; *Herberg v. Swartz*, 89 Wn.2d 916, 925, 578 P.2d 17 (1978) ("An issue, theory or argument not presented at trial will not be considered on appeal."); *Washington Fed. Sav. v. Klein*, 177 Wn. App. 22, 29, 311 P.3d 53 (2013) (same). For instance, in *Gardner v. First Heritage Bank*, 175 Wn. App. 650,

674, 303 P.3d 1065 (2013), the Court rejected an attempt by a party to raise a new theory of liability under the CPA for the first time on appeal: "We need also not reach Gardner's third CPA allegation because Gardner failed to allege a CPA violation involving the Ellis purchase and sale agreement below."

Here, Ms. Suarez did not argue either a disparate treatment theory or a retaliation theory below. In fact, the words "disparate treatment" do not appear in Ms. Suarez's briefing below until *after* the Court granted summary judgment, appearing for the first time in her motion for reconsideration. *See* CP at 408. This is the entirety of what she said on the subject at the reconsideration stage: "Plaintiffs claims are brought in the context of disparate treatment, which requires her to show that other employees that are not part of the protected class were given the benefit that plaintiff was seeking." CP at 408. Disparate treatment is never otherwise mentioned in Plaintiff's briefing. Similarly, Ms. Suarez never mentioned the word "retaliate" in

her summary judgment papers below. Therefore, the Court should decline to consider both of these theories.

Ms. Suarez did not raise disparate treatment or retaliation below and cannot raise them for the first time here.

E. The Denial of Ms. Suarez's Motion for Summary Judgment is Not Properly Before this Court

Ms. Suarez suggests in passing that, if this Court reverses the Defendant's motion for summary judgment, it should also reverse the denial of Plaintiff's motion for summary judgment. Appellant's Opening Br. at 17–18, 21. The Court should reject this argument for two reasons. First, in her Notice of Appeal, Ms. Suarez specifically declined to appeal the denial of her motion for summary judgment. Second, Ms. Suarez conceded below that summary judgment was inappropriate on her WLAD theory.

Ms. Suarez did not appeal the denial of her motion for summary judgment. Under the Rules of Appellate Procedure, when filing a Notice of Appeal, the Notice must "designate the decision *or part of decision* which the party wants reviewed." RAP 5.3(a) (emphasis added). This designation limits the scope

of review. *Id.* While the Court has discretion to broaden the notice under RAP 5.3(h), implicit in that discretion is a process where a new Notice of Appeal is filed and any supplement to the record is completed. *See* RAP 5.3(h). Here, Ms. Suarez explicitly designated only part of the trial court's decision: "*The portion of the decision to be reviewed* is the granting of the complete summary judgment in favor of Defendant's on all claims." CP at 469 (emphasis added). This designation limits her appeal to that issue.[7]

Additionally, Ms. Suarez conceded below that Defendants raised questions of fact on all of her bases for liability except one. At oral argument, Ms. Suarez's commented that she had three arguments for why summary judgment should be granted. 1RP at 8. The first two were related to her WLAD reasonable

[7] The Court should decline to broaden the notice of appeal to include the denial of Ms. Suarez's motion. Ms. Suarez has only suggested in brief comments that the Court should reverse the denial of her motion. Appellant's Opening Br. at 17–18, 21. Such passing treatment does not warrant the Court's exercise of discretion under RAP 5.3(h).

accommodation claim and the third related to her wrongful termination in violation of public policy claim. *Id.* Ms. Suarez, however, conceded that the first two arguments were no longer viable because Defendants had created questions of fact: "we acknowledge that there are disputed issues of fact with regards to the first two." 1RP at 9. The only argument that Ms. Suarez maintained below was relating to Ms. Suarez's wrongful termination for taking the day off for a religious purpose. *See* 1RP at 9–10. Because Ms. Suarez expressly abandoned her affirmative summary judgment based on WLAD, the superior court never considered it in the first instance. 1RP at 52–53 (recognizing the concession). She cannot now maintain them here.

Ms. Suarez's claim for wrongful discharge in violation of public policy, which she did argue affirmatively below, simply fails as a matter of law. As addressed above, there is simply no privilege to miss work for a religious purpose when the employer specifically denied the request.

F. The Court Should Reject Ms. Suarez's Request for Attorney Fees

Neither RAP 18.1 nor RCW 49.48.030 supports Ms. Suarez's request for attorney fees. Rule 18.1 provides, "If applicable law grants to a party the right to recover reasonable attorney fees or expenses on review before either the Court of Appeals or Supreme Court, the party must request the fees or expenses as provided in this rule." RAP 18.1(a). Thus, the source of the entitlement to attorney fees must come from somewhere other than the rule. RAP 18.1(a). Additionally, the party must "devote a section of its opening brief to the request for fees." RAP 18.1(b).

Here, Ms. Suarez's request fails for two reasons. First, she is not entitled to fees under RCW 49.48.030. The statute provides attorney fees when a person is "successful in recovering judgment for wages or salary owed." *See* RCW 49.48.030. However, Ms. Suarez has not recovered a judgment for anything. Even if Ms. Suarez prevails in part, and the Court reverses on the Defendants' motion for summary judgment, she cannot prevail

on her own motion, which she did not appeal. Thus, an award of attorney fees would be premature because she would not have a judgment for "wages or salary owed." *Karstetter v. King Cty. Corr. Guild*, 193 Wn.2d 672, 686, 444 P.3d 1185, 1193 (2019) (denying fee award where party "has not recovered any judgment for wages or salary"). Second, a common law claim for wrongful termination in violation of public policy does not entitle a prevailing party to attorney fees. *Roberts v. Dudley*, 140 Wn. 2d 58, 77, 993 P.2d 901 (2000) ("[A] recovery of attorney fees is not available . . . to a successful plaintiff in a common law claim for wrongful discharge.").

Therefore, an award of attorney fees is not appropriate here.

V. CONCLUSION

The superior court properly granted summary judgment to Defendants. The undisputed facts established an undue burden as a matter of law. Ms. Suarez's proposed accommodation would have conflicted with its CBA and policies regarding seniority to

other employees. Both the regular days off and vacation days are controlled through policies and prioritized based on seniority. Finally, there was no question of fact regarding Ms. Suarez's wrongful termination in violation of public policy claim. WLAD simply does not grant Ms. Suarez the privilege to miss work when her request had been denied due to a staffing shortage. The Court should affirm.

This document contains 7,275 words, excluding the parts of the document exempted from the word count by RAP 18.17.

RESPECTFULLY SUBMITTED this 20th day of December, 2021.

ROBERT W. FERGUSON
Attorney General

s/ Nicholas Ulrich
NICHOLAS ULRICH, WSBA 50006
Assistant Attorney General
Attorney for Defendants/Appellees
1116 W. Riverside, Suite 100
Spokane WA 99201
Tel: 509-456-3123
Nicholas.Ulrich@atg.wa.gov

WASHINGTON ATTORNEY GENERAL SPOKANE TORTS

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